

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506601	JONES VS YRUNGARAY	MOTION TO STRIKE COMPLAINT ON 1ST AMENDED CROSS-COMPLAINT OF BENJAMIN YRUNGARAY BY BRIAN HOPKINS, JSAMJ, INC., JARED JONES

Tentative Ruling: Granted with thirty-days' leave to amend.

Moving parties challenge the FACC request for punitive damages. The motion to strike argues the pleading does not include specific facts showing malicious, oppressive, or fraudulent conduct by the moving cross-defendants. The FACC requests punitive damages in paragraphs 116 and 138. Yrungaray argues the facts alleged in the FACC describe a scheme to strip him of his interests in the properties. (Opp. p.5:17-20.) However, the allegations are conclusory and do not include any fact-specific allegations of malicious, oppressive, or fraudulent behavior.